PETITION - UNDERAGE DRINKING CHARGES

IN THE ..... COURT
(Clerk of the court that disposed of the charge - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:
.....

UNDERAGE ALCOHOL POSSESSION EXPUNGEMENT (MISS. CODE ANN. Sec. 67-3-70)

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under Miss. Code Ann. Sec. 67-3-70(6); Miss. Code Ann. Sec. 67-3-70(1); Miss. Code Ann. Sec. 67-3-70(2) and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

Section 67-3-70 governs underage alcohol offences and carries its own expungement provision at subsection (6). The complete current text was obtained on this pass from enrolled HB 917 Sec. 34 (Laws 2020 ch. 314), the last enacted amendment, so the one-year period is now supported by PRIMARY authority rather than by the secondary clearinghouse source the review relied on. Subsection (6) reads: 'Any person who has been charged with a violation of subsections (1) or (2) of this section may, not sooner than one (1) year after the dismissal and discharge or completion of any sentence and/or payment of any fine, apply to the court for an order to expunge from all official records all recordation relating to his arrest, trial, finding or plea of guilty, and dismissal and discharge. If the court determines that such person was dismissed and the proceedings against him discharged or that such person had satisfactorily served his sentence and/or paid his fine, it shall enter such order.' Four consequences follow. The route reaches subsections (1) and (2) only - underage purchase or possession of light wine, light spirit product or beer, and an underage false-age statement or false document - and does not reach subsection (3), furnishing to a minor. It reaches anyone 'CHARGED WITH' such a violation, so dismissed and discharged cases qualify as well as convictions. The one-year clock runs from the LATER of dismissal and discharge, or completion of any sentence and payment of any fine, not from the offence or the charge. And relief is MANDATORY on the findings - 'it shall enter such order' - unlike the discretionary lower-court misdemeanour route. The section prescribes no petition contents, no prosecutor notice, no open-court showing, no rehabilitation finding, no hearing and no fee, and it contains no restoration-of-status clause, no perjury-protection clause and no Title 63 carve-out.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it, except where the petition already states the fact - your name, your date of birth and your contact details are printed in this petition and are not asked for again. Fill each item below from the record itself.

[C1 - other name on the case] Any OTHER name this case is under - a former name, a maiden name, an alias, or a misspelling in the court record. Your full legal name is printed in the caption above and in the signature block below, so only this second limb is left for you. Write NONE if there is no other name.
.....
.....

[C2 - county of residence] Which Mississippi county and city do you live in?
.....
.....

[C3 - court level] Which court handled the case - justice court, county court, circuit court, or municipal court? Mississippi has four trial court levels that all handle expungements and people routinely misidentify which one heard their case.
.....
.....

[C4 - court county] Which county was that court in? For a municipal court, which city?
.....
.....

[C5 - cause number] What is the cause or case number?
.....
.....

[C6 - charge name] What were you charged with, and under which Mississippi Code section if you know it?
.....
.....

[C7 - offense date] On what date did the offence happen?
.....
.....

[C8 - arrest date] On what date were you arrested or cited?
.....
.....

[C9 - arresting agency] Which agency arrested or cited you, and what is their case number if you have it?
.....
.....

[C10 - prosecuting authority] Which prosecuting authority handled the case - the district attorney for the circuit district, or a county or municipal prosecuting attorney?
.....
.....

[C11 - alcohol offense] What exactly were you charged with - underage purchase or possession of beer, light wine or a light spirit product?

.....
.....

[C12 - disposition type] How did the case end?
.....
.....

[C13 - disposition date] On what date did it end that way?
.....
.....

[C14 - sentence completion date] If you were sentenced, on what date did you complete everything the court ordered, including any fine?
.....
.....

[C15 - age at offense] How old were you at the time of the offence?
.....
.....

[C16 - court office confirmation of the waiting period] Have you asked the clerk of that court what the current waiting period is for this kind of expungement, and whether that court charges a fee?
.....
.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under Miss. Code Ann. Sec. 67-3-70(6); Miss. Code Ann. Sec. 67-3-70(1); Miss. Code Ann. Sec. 67-3-70(2).

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

PROPOSED ORDER - UNDERAGE DRINKING CHARGES

IN THE ..... COURT
(Clerk of the court that disposed of the charge)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if one was assigned:
.....

PROPOSED ORDER

This matter came before the Court on the petition of the petitioner under Miss. Code Ann. Sec. 67-3-70(6); Miss. Code Ann. Sec. 67-3-70(1); Miss. Code Ann. Sec. 67-3-70(2). The Court, having considered the petition and anything filed with it,

ORDERS that .....

(EVERY DECISION ON THIS PAGE IS THE COURT'S. This proposed order travels with the petition for the Court's convenience; nothing on it is completed, decided, signed or dated by the petitioner or by this packet.)

DATED .....

.....
(The court signs here if, and only if, it grants the petition.)

CERTIFICATE OF SERVICE - UNDERAGE DRINKING CHARGES

IN THE ..... COURT
(Clerk of the court that disposed of the charge)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if one was assigned:
.....

CERTIFICATE OF SERVICE

I, Maria-Alejandra O'Shaughnessy-Whitfield, state that on the date I write beside my signing line below, and not before, I delivered a copy of the petition and of the proposed order filed with it to the person or office named here:

Name and office of the person or office to whom the papers were delivered:
.....

Address at which the papers were delivered:
.....

How the papers were delivered - by hand, by mail, or by the electronic method the court accepts:
.....

DATE ..... SIGNATURE OF PETITIONER .....

(DO NOT SIGN OR DATE THIS PAGE UNTIL THE PAPERS HAVE ACTUALLY BEEN DELIVERED. A certificate signed before delivery states something that has not happened.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

RECORDS CHECKLIST - UNDERAGE DRINKING CHARGES

This records checklist is for Maria-Alejandra O'Shaughnessy-Whitfield.

RECORDS CHECKLIST

Gather these records before filing. Ask the clerk which records must be attached to the petition and whether the clerk requires certified copies. This checklist does not replace any record and is not proof that a missing record exists.

- Certified copy of the disposition or judgment. Ask the clerk for a certified copy of the order showing how the case ended.

- Account balance sheet showing a zero balance. Ask the clerk for confirmation that any fine and costs are paid in full.

Keep the originals. File or serve copies only as the clerk directs. Before filing, confirm the current waiting period, the correct court and any fee with the clerk.

FILING INSTRUCTIONS - UNDERAGE DRINKING CHARGES

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Underage Alcohol Possession Expungement (Miss. Code Ann. Sec. 67-3-70).

Section 67-3-70 governs underage alcohol offences and carries its own expungement provision at subsection (6). The complete current text was obtained on this pass from enrolled HB 917 Sec. 34 (Laws 2020 ch. 314), the last enacted amendment, so the one-year period is now supported by PRIMARY authority rather than by the secondary clearinghouse source the review relied on. Subsection (6) reads: 'Any person who has been charged with a violation of subsections (1) or (2) of this section may, not sooner than one (1) year after the dismissal and discharge or completion of any sentence and/or payment of any fine, apply to the court for an order to expunge from all official records all recordation relating to his arrest, trial, finding or plea of guilty, and dismissal and discharge. If the court determines that such person was dismissed and the proceedings against him discharged or that such person had satisfactorily served his sentence and/or paid his fine, it shall enter such order.' Four consequences follow. The route reaches subsections (1) and (2) only - underage purchase or possession of light wine, light spirit product or beer, and an underage false-age statement or false document - and does not reach subsection (3), furnishing to a minor. It reaches anyone 'CHARGED WITH' such a violation, so dismissed and discharged cases qualify as well as convictions. The one-year clock runs from the LATER of dismissal and discharge, or completion of any sentence and payment of any fine, not from the offence or the charge. And relief is MANDATORY on the findings - 'it shall enter such order' - unlike the discretionary lower-court misdemeanour route. The section prescribes no petition contents, no prosecutor notice, no open-court showing, no rehabilitation finding, no hearing and no fee, and it contains no restoration-of-status clause, no perjury-protection clause and no Title 63 carve-out.

WHERE IT GOES

Clerk of the court that disposed of the charge
File with the clerk of the court that handled the underage alcohol case, after confirming with that clerk the current waiting period, venue and fee.
Venue: The court in which the underage alcohol charge was disposed of. Section 67-3-70(6) says simply 'apply to the court', with no circuit-court transfer and no county-specific provision, so the charging or convicting court is the destination.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: No amount is published here. Section 99-19-72's fee reaches petitions under Sec. 99-19-71 and does not reach Sec. 67-3-70 by its terms. The participant confirms with the clerk. Fee waiver as recorded: Not established. The participant asks the clerk.

WHO MUST BE SERVED

Service as recorded: United States mail or hand delivery, evidenced by the certificate of service. Notice as recorded: The prosecuting authority for the court receives a copy. No response or objection period is established.

WHAT THE RECORD SAYS YOU MUST KNOW

- Mississippi has no statewide expungement form and Sec. 99-19-71 prescribes none. The four archived petition and order PDFs are Fourth Circuit Court District models covering Leflore, Sunflower and Washington counties only: every county field reads '(Washington, Sunflower, or Leflore)', the certificate of service hardcodes the Fourth District DA at Greenville, the signature blocks are dated 2020, and the orders carry an APPROVED AS TO FORM block. They are drafting references only. Court, county and prosecuting authority are participant-data fields and are never hardcoded.
- Build the district-variable fields - court, court level, county, cause number, and the prosecuting authority's name and address - as participant data, never hardcoded. Never default to the Greenville address, the three Fourth District counties, or the year 2020.
- Tell the participant that Mississippi has no statewide expungement form, that practice varies by county and by circuit district, that some districts expect the district attorney to approve the order as to form before the judge will sign, and that they should call the clerk of the court where the case was heard before filing to ask whether that court has its own preferred form or additional requirements.
- The one-year waiting period is retained ONLY because Sec. 67-3-70(6) was read from primary authority on this pass - enrolled HB 917 Sec. 34, Laws 2020 ch. 314 - and not because a secondary clearinghouse source reported it. The clock runs from the later of dismissal and discharge or completion of any sentence and payment of any fine.
- Relief is mandatory on the statutory findings - 'it shall enter such order' - unlike the discretionary lower-court misdemeanour route. Section 67-3-70 contains no restoration-of-status clause, no perjury-protection clause and no Title 63 carve-out, so participant-facing copy must not import those effects from Sec. 99-19-71.
- Instruct the participant to confirm the current waiting period, the correct court and any fee with the clerk before filing.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- The clerk cannot confirm the current waiting period or the correct court.
- The charge may be something other than underage purchase or possession of light wine, light spirit product or beer.
- The case involved a DUI, which routes to the DUI track.
- The participant is not a US citizen.
- Obtaining the district attorney's approval as to form is the practical gate on the entire Mississippi product and it is a negotiation, not a filing. LegalEase prepares the certificate of service, the cover letter and the notice calendar; it does not seek, obtain or negotiate the prosecutor's approval, and a declining or silent prosecutor is an attorney handoff.

THE PAGES IN THIS SET

- ms-mip-primary-filing-1: the composed petition, on this route's own statutory ground (Underage drinking charges)
- ms-mip-proposed-order-2: the proposed order the court may sign; every decision line is the court's and is left blank (Underage drinking charges)
- ms-mip-certificate-of-service-3: the page on which the participant records that the papers were actually delivered, signed only after delivery (Underage drinking charges)
- ms-mip-attachment-4: the route-specific records checklist identifying the records to gather and confirm with the filing clerk (Underage drinking charges)
- ms-mip-instructions-5: what this set is, where it goes, what it costs, who must be served, and when to stop (Underage drinking charges)